

26SMCV00739 26SMCV00739

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TENTATIVE RULING

September 22, 2026

26SMCV00739 (Gerald v. Bishop Gold Group, LLC)

RELEVANT BACKGROUND

On February 9, 2026, plaintiff Jason Gerald (Plaintiff) filed his complaint against Bishop Gold Group LLC (Defendant) and Does 1-20. Plaintiff alleges five causes of action arising from his employment with Defendant: 1. Failure to Pay Minimum Wage 2. Failure to Pay All Wages Due Upon Termination: Waiting Time Penalties 3. Failure to Pay All Wages Earned 4. Failure to Pay Overtime Wages 5. Failure to Issue Accurate Itemized Wage Statements.

Defendant is a company that is involved in the gold retail industry. (Compl. ¶ 21.) Defendant employed Plaintiff, at all relevant times, as an account executive, from on or about December 30, 2024, until the termination of Plaintiff's employment on or about July 7, 2025. (Id. 22.) Plaintiff's duties included generating outbound calls, qualifying leads, supporting senior closers, and maintaining records in Salesforce. (Id.) Plaintiff alleges that he was not properly paid for all overtime hours worked. (Id. ¶ 25.)

INSTANT MOTION

On May 6, 2026, Defendant filed the instant motion to compel arbitration.

No opposition has been filed. On September 15, 2026, Defendant filed a notice of non-opposition.

DISCUSSION

A “written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (Code Civ. Proc., § 1281.)

Code of

Civil Procedure section 1281.2 authorizes the court to order arbitration of a controversy if it finds the parties have agreed to arbitrate that dispute. Section 1281.2 provides, “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] (a) The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for the revocation of the agreement. [¶] (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact...” (Code Civ. Proc., § 1281.2.)

A party

petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 356-357.)

A.

Existence of an Arbitration Agreement

“Under both

federal and state law, the threshold question presented by a petition to compel

arbitration is whether there is an agreement to arbitrate.” (B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 942.) “The moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-66.) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement....If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Ibid.)

“With respect to the moving party’s burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court.” (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160.)

“Under California law, parties may validly incorporate by reference into their contract the terms of another document.’ [Citation.] The reference to the incorporated document must be clear and unequivocal and the terms of the incorporated document must be known or easily available to the contracting parties.” (Slaughter v. Bencomo Roofing Co. (1994) 25 Cal.App.4th 744, 748, citing Baker, 216 Cal.App.3d at p. 1264; Spellman v. Securities, Annuities & Ins. Services, Inc. (1992) 8 Cal.App.4th 452, 457; Chan v. Drexel Burnham Lambert, Inc. (1986) 178 Cal.App.3d 632.)

Here, Defendant argues that, during his onboarding processes, on December 30, 2024, Plaintiff reviewed and signed an agreement setting out the terms of his relationship with Bishop Gold, including a valid and enforceable arbitration provisions. (Mason Decl. ¶¶ 3-4.) The arbitration clause provides, in full:

In the event of any dispute or claim relating to or arising out of your employment relationship with the Company, this agreement, or the termination of your

employment with the Company for any reason (including but not limited to any claims of breach of contract , wrongful termination or unlawful discrimination or harassment or retaliation) , you and the Company agree that all such disputes shall be fully resolved by private, binding arbitration conducted by JAMS before a sin g le arbitrator in Los Angeles. California under the JAMS Employment Arbitration Rules & Procedures then in effect. which rules are available online at the JAMS website at www.jamsadr.com. The arbitrator shall permit adequate discovery and Is empowered to award all remedies otherwise available in a court of competent jurisdiction and any Judgement rendered by the arbitrator may be entered by any court of competent jurisdiction. The arbitrator shall issue an award in writing and state the essential findings and conclusions on which the award is based. You and the Company hereby knowingly and willingly waive your respective rights to have any such disputes or claims tried to a Judge or jury In the event any provision of this agreement is found to be unenforceable by an arbitrator or court, such provision shall be deemed modified to the extent necessary to allow enforceability of the provision or deleted such that the enforceability of the remaining provisions remain unaffected.

(Id. ¶ 5,
Ex. A [emphasis added].)

The Court finds that Defendant has satisfied its initial burden of establishing the existence of an arbitration agreement by providing a copy of the agreement. (Mason Decl., Ex. A.) Plaintiff agreed to arbitrate “any dispute or claim relating to or arising out of your employment relationship with the [Defendant], this agreement, or the termination of your employment with the [Defendant].” (Id. ¶ 5, Ex. A [emphasis added].) The arbitration clause further provides that arbitration must be conducted pursuant to the rules, regulations, and requirements of Judicial Arbitration and Mediation Services (“JAMS”). (Id.) Plaintiff’s claims are within the scope of the arbitration clause given that all of them arise from his employment with Defendant. (See Compl., generally.)

Defendant contends that the arbitration agreement includes a delegation clause. Defendant references the following on page 1 of the agreement: “any dispute or claim relating to or arising out of . . . [the parties] agreement . . . with the Company for any reason.” (Mason Decl. ¶ 5, Ex. A, Agreement at 1.) The Court disagrees with Defendant that this constitutes a clear and unmistakable delegation clause. But

the Court agrees with Defendant that the Agreement's incorporation of the JAMS Comprehensive Arbitration Rules provides an independent basis for delegation. (Id.; Rigali Decl. ¶ 2, Ex. B, at 1.) JAMS Comprehensive Rule 11(b) grants the arbitrator independent authority to hear and determine all challenges to jurisdiction and arbitrability, including "who are proper Parties to the Arbitration." (Id.)

The Court finds that Plaintiff has failed to meet his responsive burden of challenging the authenticity of the agreement given that Plaintiff has not filed an opposition.

Accordingly, Defendant's motion to compel arbitration is GRANTED.

The action is STAYED pending arbitration. (Code Civ. Proc. § 1281.) The Court sets a status conference regarding the arbitration for September 22, 2027, at 8:30 a.m.

Moving party to give notice.